

25STCP04869 25STCP04869

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Case Number: 25STCP04869 Hearing Date: August 24, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Abdul Malik Jami's

Petition to Correct Arbitration Award, filed on June 11, 2026 and Amended

Petition to Correct Arbitration Award, filed on July 24, 2026, are denied.

Analysis:

On December 18, 2025, Petitioner Abdul Malik Jami ("Petitioner") filed the instant action by way of a Petition to Correct or Vacate Arbitration Award ("the Petition") against Respondent AMCCenter. The original Petition came for hearing on April 23, 2026, and was denied without prejudice because it was not accompanied by a proof of service, appeared to name the incorrect party as Respondent, and failed to attach facts in support of the requested relief. (Minute Order, 04/23/26.) The Court scheduled an Order to Show Cause Re: Failure to File Amended Petition for June 23, 2026. (Ibid.)

On June 11, 2026, Petitioner filed another Petition to Correct or Vacate Arbitration Award, naming "AMCCenter dba and Issa Aryubi" as Respondent. (Petition, filed 06/11/26, ¶1.) Petitioner then filed a Proof of Service by First-Class Mail of the "First Amended Petition to Vacate or Correct Contractual Arbitration Award; First Amended Memorandum of Points and Authorities; Declaration of Abdul Malik Jami; Exhibits 1, 2, 3, and 4." (Proof of Service by Mail, 06/22/26.) On June 23, 2026, the Court discharged the Order to Show Cause and set the hearing on the second Petition for August 24, 2026. (Minute Order, 06/23/26.) On July 24, 2026, Petitioner filed a request for dismissal of "respondent Arbitration Mediation Concillation Center (AMCCenter)."

On the same day, Petitioner filed an Amended Petition to Correct or Vacate Arbitration Award against Respondent Issa Aryubi ("Respondent Aryubi"). On August 17, 2026, Petitioner again filed a Proof of Service of "First Amended Petition to Vacate or Correct Contractual Arbitration Award; First Amended Memorandum of Points and Authorities; Declaration of Abdul Malik Jami; Exhibits 1, 2, 3, and 4." (Proof of Service, filed 08/17/26, ¶13.)

Discussion

Initially, the Court notes that Petitioner's multiple Petitions create confusion and likely deprived Respondent of proper notice of the moving papers in this action. As indicated, after the original Petition was denied without prejudice, Petitioner filed a second Petition on June 11, 2026, which was served on Respondent Aryubi on June 15, 2026. (Proof of Service by Mail, filed 06/22/26.) That Petition attaches a memorandum of points and authorities, a supporting declaration, and dozens of pages of exhibits. Petitioner then filed an Amended Petition on July 24, 2026, with a proof of service stating that he served on Respondent Aryubi on an unknown date. (Proof of Service, filed 08/17/26.) The Amended Petition consists of only three pages—the petition itself with no other pages attached. (Amended Pet., filed 07/24/26.) The Proof of Service identifies many additional documents purportedly served, including an amended Memorandum, a Declaration, and Exhibits, none of which were filed with the Amended Petition.

The Court will address both Amended Petitions as filed.

The Amended Petition filed July 24, 2026, must be denied for lack of proof of service and for lack of supporting evidence. It is merely the three-page form Petition, with nothing attached.

The Amended Petition filed on June 11, 2026, is likewise denied. The following analysis applies to that Petition.

Service of the Petition and Notice of Hearing

In the Petition filed on June 11, 2026, Petitioner demonstrates that following the parties'

dispute over the construction work, they agreed to arbitrate before the Contractors State Licensing Board ("CSLB"). (Pet., filed 06/11/26, Exh. 1, Submission to Mandatory Arbitration.) At Exhibit 1, the June 11, 2026 Petition attaches what Petitioner called "The Original Construction Contract," which includes an alternative dispute resolution provision as follows:

Dispute

Resolution Mediation and Arbitration. Upon the execution of this Agreement, the Parties agree that they shall mediate any dispute that arises between them concerning this Agreement or its terms, interpretation or enforcement. Mediation shall be held in the County of Sacramento, State of California, by a mediation service, individual mediator, or peer mediator from the California State License Board. The costs of mediation shall be borne by the parties equally. Only after mediation has been conducted and fails to resolve the dispute shall a party have the right to either pursue litigation, arbitration, or resolve the matter in dispute. In the event that such party desired to resolve such dispute through arbitration it shall require the consent of the other party under terms to be agreed upon. The prevailing party in any action or proceeding to enforce this Contract shall recover from the non-prevailing party its reasonable attorney's fees and costs (including expert witnesses) in that action or proceeding.

(Pet., filed 06/11/26, Exh. 1, ¶15.) When parties submit to arbitration through the CSLB, the arbitration procedure is governed by Business & Professions Code section 7085.5. Under section 7085.5, service of papers in connection with any court action regarding the arbitration proceeding may be served by regular mail to the party's last known address. (Bus. & Profs. Code, § 7085.5, subd. (p)(1).) Petitioner served Respondent Aryubi with the June 11, 2026 Petition by first-class mail on June 22, 2026 and the Court mailed Respondent Aryubi notice of the hearing date on the following day. (Certificate of Mailing, 06/23/26.) Service of the Petition and Notice of Hearing Date, therefore, complied with the statutory requirements.

Contents of Petition

"Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ. Proc., § 1285.) "If a

petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

Code of Civil

Procedure, section 1285.4 states that a petition under this chapter shall:

a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

b)

Set forth the names of the arbitrators.

c)

Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

(Code Civ. Proc., § 1285.4.)

As discussed above, Petitioner has demonstrated that the parties agreed to arbitration before the CSLB. The arbitration was conducted by Stephanie Felton. (Pet., filed 06/11/26, ¶6.) However, the Petition filed by Petitioner on June 11, 2026 does not attach a copy of the arbitration award issued by the CSLB. The Petition states that the award is attached as Attachment 8(c), but there is no such attachment. (Pet., filed 06/11/26, ¶8c.) Petitioner's supporting declaration also states that the award is included in Exhibit 1, but it is not. (Pet., filed 06/11/26, Jami Decl., ¶7 and Exh. 1.)

Petitioner's failure to include a copy of the arbitration award mandates denial of the Petition filed on June 11, 2026. Not only does it violate the statutory requirements, but it also deprives Respondent of notice of the award Petitioner seeks to correct or vacate in this action. Finally, without a copy of the award, the Court cannot evaluate the merits of Petitioner's arguments regarding why the award amount must be corrected or vacated.

Conclusion

Based on the foregoing, Petitioner

Abdul Malik Jami's Petition to Correct Arbitration Award, filed on June 11, 2026 and Amended Petition to Correct Arbitration Award, filed on July 24, 2026, are denied.

Judicial Assistant to give notice.